

DISSENTING OPINION BY M. VOGT.

[*Translation.*]

According to the Saga, Gunnbjörn Ulvsson, who left Norway for Iceland, about the year 900, was driven westwards by a storm. He saw a large country and some islands to the West and subsequently succeeded in reaching Iceland. Later, two inhabitants of Iceland set out to search for the islands seen by Gunnbjörn and, according to the Saga, they reached Greenland and passed the winter there.

Eirik Raude (Eric the Red) is, however, generally regarded as the discoverer of Greenland; he was born in Norway about 950 and left for Iceland about 970. About 980 he went to Greenland. He reached the habitable region on the South-West, spent three winters there and visited the West coast from Cape Farvel to a point far to the North. He it was who named the country "Greenland".

In 984, Eirik Raude began the colonization of the South-West coast. The inhabitants of Iceland who accompanied him were of recent Norwegian origin, the colonization of Iceland by Norwegians having begun in 870. It is not easy to fix the precise date from which it may be said that Iceland became a distinct State. During the ensuing period, immigration to Greenland continued from Iceland and Norway.

As regards communications between Greenland and other countries, these were directed partly towards Iceland, but mainly towards Norway, whence came the goods which the settlers needed.

In 1261, the Greenlanders submitted themselves of their own free will to the King of Norway, who promised to maintain regular navigation to the colonies in Greenland.

This regular navigation, which was essential to the Greenlanders, ceased in 1410 and thus isolated, the settlers succumbed in the course of the xvth century to the rigours of the climate and the attacks of native Eskimos from the North who destroyed the colonies.

In the following centuries, some expeditions set out for Greenland, but no regular communications were established and no colonization undertaken.

Only at the beginning of the xviiith century were regular communications with Greenland re-established, after the Norwegian Pastor Hans Egede had succeeded in forming the Greenland Company of Bergen. In 1723, the King of Norway and Denmark, in the concession granted to this company,

expressed his intention of re-establishing the old commercial intercourse between Norway and "the country of Greenland belonging to Our Kingdom of Norway". Hans Egede left for Greenland in 1721 and, in the same year, founded the first colony there. This marked the beginning of the second Norwegian colonization of Greenland, which gradually extended in the course of the XVIIIth century. The colonies thus established remained Norwegian possessions until 1814, when the King of Denmark and Norway, by the Treaty of Kiel, ceded the kingdom of Norway to the King of Sweden—"Greenland, the Ferroe Isles and Iceland excepted".

The Treaty of Kiel was concluded on January 14th, 1814, and ratifications were exchanged on February 9th, 1814. In an open letter, dated January 18th, 1814, King Frederick VI released his Norwegian subjects from their oath of allegiance. Norway maintained that her union with Denmark was dissolved by this letter. The Norwegian nation did not recognize the Treaty of Kiel as binding upon them; they held that it was not within the power of a king to cede a nation, against its will, to another king. Accordingly, the Norwegian nation assumed for itself full sovereignty. A union between Norway and Sweden was concluded on November 4th, 1814. On the 10th of the same month, the Swedish Minister for Foreign Affairs wrote as follows in instructions addressed to Swedish diplomatic representatives abroad: "We owe the union of Norway to Sweden not to the provisions of the Treaty of Kiel but to the trust of the Norwegian nation."

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The main question in the case before the Court is that of Danish sovereignty over the disputed territory, and this question has generally been presented in the course of the proceedings as the question of Danish sovereignty over Greenland as a whole.

In approaching this question, we must in the first place consider the legal consequences of the overtures made by the Danish Government to various Powers between 1915 and 1921.

The standpoint of the Danish Government in the question of Danish sovereignty was defined in a report made on August 1st, 1916, to His Majesty the King of Denmark by his Minister for Foreign Affairs. This report contains the following: "Finally, it appears to me most important that the United States of America have offered to make, simultaneously with the signature of a convention [concerning the Danish West Indies], an official declaration to the effect that the Government of the United States of America would not object to the Danish Government extending their sovereignty to include the whole of

Greenland; such a step would afford valuable support to the future development and maintenance of Danish interests in the possession in question...."

In the documents submitted, we find the expressions used by Denmark in her representations to foreign governments with a view to securing the extension of Danish sovereignty to all Greenland. These expressions vary. The instructions of March 2nd, 1920, given by the Danish Minister for Foreign Affairs, contain the following: "It is desirable that the Danish Government should extend its care, by means of its sovereignty, to the whole of Greenland." By this expression the Danish Government indicated what may be called the substantial motive of its overtures. The ostensible reason is stated as follows: "Having got this declaration [that of the United States of America], it [the Danish Government] proposes also to obtain recognition by other Powers of Danish sovereignty over Greenland", and again: "I request you therefore to endeavour to obtain from the Italian [British, etc.] Government official recognition of Danish sovereignty over all Greenland." In the same instructions, the Danish Government informed its Ministers abroad that "effective possession" has been taken "in the name of Denmark" of a certain district in Greenland which had been "outside the districts hitherto under the Danish administration", and again "that formal possession of Greenland as a whole has not been taken". An instruction of July 12th, 1919, issued by the Danish Minister for Foreign Affairs to the Danish Minister at Oslo contains the following sentence: "I will, on the other hand, ask you¹ to bring out in the course of the conversation that the Danish Government has for some years past been anxious to obtain the recognition by all the interested Powers of Denmark's sovereignty over the whole of Greenland and that it intends to place that question before the above-mentioned Committee" (at Paris).

All these expressions convey the same idea, namely, that Denmark had not hitherto possessed sovereignty over all Greenland. The parts of Greenland which have not been brought under the Danish Greenland Administration and of which possession has not been effectively or even formally taken, cannot be regarded as under Danish sovereignty. For this reason the notes despatched by the Danish Ministers, who had received these instructions, all contain expressions such as "extend her sovereignty to all Greenland"; "extend her care, by means of her sovereignty, to all Greenland"; or, "extension of Danish

¹ The Danish text reads as follows: "*De bedes imidlertid under samtalen fremhæve....*"

sovereignty to the whole of Greenland". There is no trace of the despatch of any rebuke or correction to the Danish Ministers abroad who, in carrying out their instructions, used the expressions "extend", or "extension of", "Danish sovereignty". In point of fact, these Ministers merely gave accurate expression to the idea embodied in the instructions themselves. The last note is that of January, 1921, to the Norwegian Government. In this we read: "The Danish Government also reckoned on an extension of Danish sovereignty to all Greenland not meeting with difficulties on the part of Norway." This reference to the request made verbally in 1919 makes no qualification as regards the expression "extension of sovereignty".

Already in December 1915, the Danish Minister in Washington, in a note to the United States Secretary of State, had spoken of "the extension of the care and suzerainty of Denmark to the whole of Greenland", and the Danish Minister in Paris, in his note to the French Government in 1920, used the words: "extend her sovereignty to all Greenland".

If the Danish Government had believed that such expressions were not correct, it would no doubt have taken every care to warn its Ministers abroad to avoid making use of the words which have been quoted above.

The replies of the governments whom Denmark had approached also show, for the most part, that these governments considered that what was desired was a future extension of Danish sovereignty. I would also refer in this connection to the history of the Danish-American negotiations concerning the sale of the Antilles, as related by Charles Callan Tansill in a recent work: *The Purchase of the Danish West Indies*.

It is true that on various occasions, in the XIXth century, the Danish Government had expressed its conviction, in Denmark, that the sovereignty over the whole of Greenland belonged to Denmark.

On the other hand, during the same century, there had been no small number of official acts and declarations which revealed an opposite conviction. Thus, the expedition of Graah (1829-1830), which acted "under instructions from the King", and the expeditions of Holm (1883-1885) and Ryder (1891-1892) organized by the Danish State, were all commanded by officers of the Royal Danish Navy; and all three of them took possession of lands on the East coast in the name

of the King. These formal acts of occupation did not produce any legal effects; but they are clear evidence that the Danish Government was not convinced that it possessed sovereignty over the whole of Greenland. This attitude was also expressed by the Danish Minister of Marine at a meeting of the Folketing, in the session of 1880-1881, in a speech which he made on the exploration of the East coast of Greenland. On that occasion the Minister said: "It is in every way natural that a part of the coast lying so near to the colonies belonging to the Danish Crown should be explored at the initiative of Denmark...."

The Holm expedition had been organized by the Commission for the Exploration of Greenland. This Commission wrote to the Ministry of Marine concerning the explorations which it behoved Denmark to undertake "in regard to territories, which are in part subject to the Danish State, and in part adjacent to the territories that are subject". The Government followed the advice of the Commission. There is nothing to show that it did not accept the argument mentioned above.

In a report submitted to the King of Denmark by the Minister of the Interior, in connection with the Tayler concession, granted in 1863, the Minister points out that no one disputed Danish sovereignty on the East coast of Greenland. In the same report it is also emphasized that Mr. Tayler "undertakes to take possession in Your Majesty's name of any new part of the coast which may be reached by the expedition....". The actual concession stipulates that "any station shall come under the sovereignty of the Danish Crown....".

Such contradictions cannot be regarded as evidence of a definite attitude, or of a firm conviction.

At the beginning of the present century, we have to note the law of May 27th, 1908, which lays down, *inter alia*:

".... Southern Greenland comprises the country situated between Cape Farewell and the Nordre-Stroem-Fiord, including the latter; Northern Greenland includes the remainder of the Danish territory on the western coast...."

In a note to the British Government, dated July 20th, 1920, the Danish Government maintains that Danish sovereignty over all Greenland was acquired "by prescriptive right". This note was occasioned by the fear lest a dispute might arise on the question of pre-emption between two of the Great Powers whom Denmark had approached. In a despatch dated December 21st, 1921, the Norwegian Minister at Copenhagen had reported, as a result of overtures made by him to the Danish Government, that the last-named Government "has refused, out of deference for America, to

accept the demand of Great Britain for a right of pre-emption, in case Denmark should desire, in the future, to alienate Greenland. The British Government then contented itself with reserving its right to be informed in case Denmark should ever contemplate thus alienating Greenland. And if I have rightly understood, Denmark must be regarded as having accepted that reservation." The argument put forward in the note of July 20th, 1920, by Denmark, finding herself in a difficult diplomatic position, to the effect that she possessed an ancient sovereignty, acquired by prescriptive right, cannot be allowed very much weight.

The most eminent Danish jurists of recent times have maintained that the Danish possessions in Greenland were limited, and they have spoken of an effective occupation, or taking into possession, in such a way as to be valid in international law, as being a necessary basis for Danish sovereignty.

The declarations of 1915 to 1921 were declarations freely made, so to speak, to the community of nations. In thus officially declaring to a certain number of Powers that it did not yet possess sovereignty over the whole of Greenland, the Danish Government debarred itself from claiming to possess an ancient sovereignty over the whole of Greenland. To concede the right of a government to put forward claims to an ancient sovereignty, only a few years after that very government has solemnly proclaimed that it did not possess that sovereignty, would be to open the door to instability in international affairs.

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It is next necessary to consider whether Denmark acquired sovereignty over the territory in dispute, subsequently to 1921.

It is clear that Denmark had the *animus possidendi* during that period; but did she have the *corpus possessionis*? The region in question is one where the citizens of another nation have engaged in fairly regular activities, certainly since, and probably long before, 1889—"a favourite resort of the Norwegian hunters"—without Denmark having attempted to exercise sovereignty over those foreigners. And these activities continued, even after the proclamation of June 16th, 1921, under which the whole of the coasts and adjoining islands of Greenland were closed to ships of foreign nationality. It is a territory, the sovereignty over which is disputed, a territory which was visited in 1930 by a Danish official expedition under the command of a Danish naval officer, without any action whatever being taken by him in regard to the serious

accusations brought by a Danish company against the Norwegian hunters in the district. He did not even interrogate the accused persons. It is a territory, forming part of the areas which M. Christensen, the former Danish Prime Minister, in a speech in defence of the Convention of 1924, referred to in the following words:

“As we have no warships in Greenland waters, nor any police-force capable of expelling them [i.e. the Norwegian hunters], we have no means of intervening.”

That statement still held good in July 1931.

It has been argued on behalf of the Danish Government that the administrators of Angmagssalik and Scoresby Sound, whose jurisdiction has not been delimited by any geographical boundaries, have been since 1894 (?), and are still, the local representatives of the Danish State in Eastern Greenland. This assertion has been contested on behalf of Norway: it has been pointed out that the officials in those two stations are in no way entitled to exercise official authority, and that in fact they never have attempted to exercise any kind of authority, outside the very limited districts entrusted to their administration.

The Danish Government has not produced any document conferring the alleged authority, outside the two stations in question, upon the above-mentioned officials. Two facts should be noted: (1) the officials mentioned by the Danish Government are employés of the Monopoly, pastors, and telegraphists; (2) Denmark undertook, in the Protocol signed on January 28th, 1924, at the closure of the negotiations for the Convention of July 9th, 1924, to trace the boundaries of the two above-mentioned colonies according to the customary rules (cf. the Ordinance of March 26th, 1751). The said Protocol, in making an express reference to the Ordinance of March 26th, 1751, indicates that the boundaries of the stations are situated, speaking generally, at a distance of fifteen miles on either hand. Considering these circumstances and the geographical situation, it is difficult to understand what governmental authority the employés of the Monopoly, the pastors and telegraphists of Angmagssalik and Scoresby Sound can possibly possess in Eirik Raudes Land.

My conclusion is that Denmark has not proved the *corpus possessionis* in respect of the territory in question, nor has she proved an “inchoate title”.

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I am led by the circumstances to examine the question of the extent of Danish sovereignty over Greenland from another point of view.

What is the origin of that sovereignty?

Until 1814, Greenland was a Norwegian dependency; it is therefore necessary to determine what was that Greenland which Denmark retained for herself at the dissolution of the union between the two kingdoms.

The instructions sent to some of the Danish Ministers abroad by the Minister for Foreign Affairs at Copenhagen, on March 2nd, 1920, begin with the words: "Danish enterprise in Greenland had its origin in 1721." In pursuance of those instructions, these Ministers presented memoranda to the different governments, in such terms as: "Danish enterprise in Greenland was initiated in 1721"; "*l'œuvre danoise au Groënland a été initiée depuis déjà 1721*"; "*l'activité civilisatrice des Danois dans le Groënland a commencé en 1721*"; "the beginning of Denmark's penetration into Greenland took place in the year 1721". Especially clear is the following declaration: "The taking into possession of Greenland by Denmark dates from a period as far distant as 1721." The latter passage is quoted from the instructions issued by the Minister for Foreign Affairs on July 7th, 1920, and the information was transmitted to the British Government in the following form: "The occupation of Greenland by Denmark took place as far back as 1721." This decisive statement is contained in the instructions, and in a diplomatic note, written with the express object of emphasizing the fact that Danish sovereignty went back to an ancient date. A letter, dated April 29th, 1921, from the Danish Minister at Oslo to the Norwegian Minister for Foreign Affairs, contains the words: "The Danish Government being about to celebrate the 200th anniversary of the attachment of Greenland to Denmark...."

When these documents speak of Denmark, this must really be understood to mean Norway, or—if it is preferred—the King of the two United Kingdoms, in his capacity as King of Norway. In any case, for the present purpose, it suffices to note that the sovereignty which Denmark invokes only goes back—according to the solemn declarations made by the Danish Government to foreign Powers—as far as the year 1721. During the proceedings, the Danish Government has used expressions such as: "the Danish Government is entitled to adduce an uninterrupted occupation of two hundred years", and "the Danish State has exercised sovereignty over all Greenland for two hundred years". These expressions are not

without importance, although the Danish Government has, in other passages, sought to base its sovereignty on a more ancient historical foundation.

Christian IV was the most remarkable of the kings of Denmark and Norway and took more interest than any of them in the countries in the northern seas. In his "Fiscal Letter" of April 1st, 1606, he writes as follows: "Greenland, which is a member [of Norway], which belongs by right to the Crown of Norway and which in the days of some of Our beloved ancestors, Kings of Denmark and Norway, by abandonment or other unfortunate circumstances, was separated and cut off, with the rights and profits attaching thereto, from the Crown of Norway." It was, however, the avowed intention of the King to restore this country to the Norwegian Crown.

When, in 1616, the Dutch captains took possession of the western coast between the 60th and 66th degree of north latitude on behalf of the States-General, Christian IV maintained a passive attitude. His successor, Frederick III, granted a concession in 1652, "seeing that the aforesaid country of Greenland was a dependency of our Kingdom of Norway". In a despatch dated January 13th, 1844, the Danish Ministry for Foreign Affairs wrote: "After 'old Greenland' [in other words, the East coast], which had been discovered by Norwegians and Icelanders at the end of the xth century, had been entirely abandoned at the beginning of the xvth century, all relations with that country ceased, until King Christian IV decided to send ships to endeavour to rediscover the eastern coast...."

The somewhat vague claims of the Danish-Norwegian kings found expression in terms such as "hereditary sovereign of Greenland" and "Our country of Greenland", etc. Thus, in the charter granted to the Greenland Company of Bergen on February 5th, 1723, the King declared his intention of re-establishing the ancient commercial relations between Norway and "the country of Greenland belonging to our Kingdom of Norway....". But no very great importance can be attached to claims of such a nature.

Even admitting that an ancient sovereignty is not forfeited by dereliction, unless the *animus* is abandoned as well as the *corpus possessionis*, it must be conceded that the sovereignty could not be still in being some centuries after the extermination of the ancient colonists and the cessation of communications.

The second colonization of Greenland, under the direction of the Pastor Hans Egede, was a Norwegian enterprise. In his numerous petitions Hans Egede recalled the fact that Greenland had been a dependency of the Kingdom of Norway. The Bergen Company, which sent Egede to Greenland, declared

its object to be that "this country which has been so long deserted and has been left in the hands of savages may, in course of time be restored to Your Majesty....". In connection with the petitions of the Bergen Company, the Principal Secretary of the Danish Chancellory stated, in an opinion presented about the end of 1722, that ".... the country [that is Greenland] has for a great number of years been *res derelicta*....".

It accordingly follows that the sovereignty which Denmark now possesses in Greenland is based upon the Norwegian colonization at the beginning of the XVIIIth century.

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From a purely historical standpoint, it was sought to base the claim for sovereignty on the fact that Greenland had, in ancient times, been a country belonging to Norway. But, according to the custom then prevalent in matters of colonization, the sovereignty was in reality restricted, after the second colonization, to certain areas surrounding the factories or stations successively established. The same system was also employed by the Monarch of the two kingdoms in dealing with possessions in the Indies and Africa. In regard to possessions in those parts of the world, the King also granted charters for colonies which might hereafter be established.

The system which it was sought to apply in Greenland consisted, from 1721 onwards, in successively extending the colonized territory, with a consequent extension of the territory under governmental administration, thus again, in turn, extending the sovereignty of Denmark. This system has been described on various occasions by the Danish Government. I will content myself with two examples.

The Danish Ministry of the Interior (Directorate of Greenland Colonies) in a letter, dated November 3rd, 1916, to the Parliamentary Commission for the Danish West Indies, refers to the establishment of the Angmagssalik station in 1894 and explains how, by a Proclamation dated March 8th, 1905, it had been "announced that the Danish establishments henceforward extended as far as latitude 74° 30' N. ; that is to say that the sovereignty of Denmark and the régime of exclusion have accordingly been extended over a fresh zone, one degree and a half of latitude in width". The Ministry's letter continues in the following terms: "These two regions, which have been incorporated at a relatively recent date, are universally recognized as being subject to Danish sovereignty ; in any case, no objection has ever been raised in any quarter against this view ; and it would perhaps be possible to maintain that Danish sovereignty could always continue

to be extended to all places where there are Danish establishments, that is to say—since a trading and mission station has now been founded by private initiative at Cape York—to every inhabited part of Greenland.”

In the instructions issued on March 2nd, 1920, by the Ministry for Foreign Affairs at Copenhagen to a number of Danish Ministers in foreign countries, the following passage occurs:

“As has been mentioned above, Denmark established colonies in Greenland as early as the beginning of the xviiith century. Later on, when it was found that Eskimos were also living outside the districts hitherto subject to the Danish administration, namely, at Cape York, Denmark extended her missionary enterprise and commercial activities to those regions and, by reason of that fact, these territories of Greenland have also been effectively taken into possession on behalf of Denmark.”

A study of the Ordinances, etc., of the xviiith century relating to Greenland, confirms the accuracy of the description, thus given by the Danish Government, of the system of colonization and administration.

Denmark has endeavoured, during the proceedings, to draw a distinction between the sovereignty itself, and the exercise of sovereignty by the Danish administration. But, if Denmark believed that she possessed a sovereignty, valid in international law, over the whole of Greenland, she ought to have prohibited trading with Greenland to all other nations; she ought to have taken steps to combat the foreign trade which she said was prohibited. But the history of the colonization shows that Denmark did not believe herself entitled to proceed in this way.

The Department of Police and Trade had stated in a proposal to the King, dated February 28th, 1721: “.... for we humbly submit that it would be imprudent to enact such a prohibition before Your Majesty’s subjects have really taken the country into possession....”.

In regard to a concession for trading with Greenland, the Principal Secretary of the Royal Danish Chancellory wrote on February 20th, 1740: “.... the last article should, moreover, be drawn in such a way as to show that His Majesty authorizes Severin alone to trade with the Greenland colonies, whether already established or hereafter to be established, and that neither His Majesty’s subjects nor foreigners may engage in trade within a given distance from the said colonies, seeing that it is evidently impossible to prohibit foreigners or others from trading in the Davis Strait so long as they do not approach nearer to the colonies than may be declared permissible for them”. The concession was modified and restricted in conformity with this proposal.

The documents filed with the Court show that the Danish Government did not know any legal method of preventing trade with foreigners other than the establishment of a chain of colonies.

The Ordinance of April 9th, 1740, provides that if any person venture "to trade in the colonies already established or hereafter to be established, in Our Country of Greenland" as also within the boundaries fixed for them, "and similarly if any person venture, in any part of Greenland whatsoever, by sea or by land, to despoil the Greenlanders or to do them violence the offenders" shall be "punished by seizure and confiscation". This Ordinance, which provides for the protection of the Eskimos, even outside the boundaries of the colonies, has been relied on as proof of the existence of a *corpus possessionis*. As a fact, however, this Ordinance is based upon a memorial of Severin, in which the latter proposes measures to prevent the Greenlanders from being despoiled or molested, offenders being liable "according to the nature of the offence [to be] duly punished as pirates".

The punishment of acts of piracy by the crews of ships did not require the existence of sovereignty in the places where such acts had been perpetrated. And piracy might take place either by sea or by land. (Pradier-Fodéré: "It matters little whether the act of brigandage is perpetrated on the high seas or on the coasts, in order to determine its character¹.")

It is interesting to cite the following paragraph in the proposal submitted to the King on April 1st, 1740: "In Severin's project it is stated that no person may, under pain of confiscation of his ship and its cargo, do any wrong or prejudice to the Greenlanders; but as the word wrong is of a rather general character, and might be construed in too wide a sense, the Commissioners have contented themselves with proclaiming that if anyone should despoil the Greenlanders or use any flagrant violence against them, his vessel shall be seized for confiscation." Here again it is clearly a question of piracy.

The Danish Government has adduced an instruction drawn up in 1737, in the following terms:

"He must warn all foreign merchants and all whalers, to refrain, from depriving the Greenlanders at any point either of blubber or fish...., this being contrary not only to our Absolutum Dominium, but also to the law of Nations; and, furthermore, Dutch subjects who act in this way are violating the attached Ordinance made in 1720 by the States-General."

¹ This subject has been fully dealt with by Paul Stiel in his book *Der Tatbestand der Piraterie*, etc. (Leipzig, 1905). Reference may also be made to the report to the Council of the League of Nations, C. 196. M. 70. 1927. V., page 204.

In acting in the manner described in the colonies, the Dutch were doubtless infringing "our Absolutum Dominium". But the fact that the instructions make reference to the law of nations and also to a Dutch Ordinance seems to prove that the Copenhagen Government was not founding itself on the idea of a Danish sovereignty extending to the whole of Greenland.

In 1753, the General Greenland Trading Company wrote: "Although the place [on the coast of Greenland] where these vessels are said to have been abandoned (so far as is known to us) is not subject to Your Majesty's sovereign *dominium*...." The King ordered that no steps should be taken to seize the ships in question.

The Ordinance of April 22nd, 1758, has been adduced by the Danish Government as evidence that, since that date, foreigners were prohibited from trading anywhere in Greenland. But if this Ordinance is compared with that of 1751, the text of which it was desired to modify, it is seen that no substantial modification was intended; and a memorial of the Trading Company, dated March 30th, 1759, describes the Ordinance of 1758 as "concerning the prohibition of trading in Davis Strait", in other words, on the colonized western coast.

The Ordinance of March 18th, 1776, maintains the principle that the establishment of stations must be effective, and must be published, as in the past. The first article speaks of the Trading Monopoly and of navigation "in the colonies and factories established, or hereafter to be established, in Greenland and the islands appertaining thereto, in Davis Strait and Disco Bay, as also in other ports and places in that region...." The article declares that the colonies and factories "extend at present between lat. 60 and 73 N.", and it prohibits trade and navigation "in the aforesaid country".

In 1921, the Danish Government informed a certain number of foreign governments that the Ordinance of 1776 prohibited access to the Greenland coast "both as regards colonies and factories already established and those which may hereafter be created". This interpretation of the Ordinance in the sense that the prohibition of access only applied to the colonies has been maintained by the Danish Government during the present proceedings. But in that case the conclusion follows that "the aforesaid country" in that Ordinance only signified the colonized western coast; and a study of the Ordinance of 1776 gives the impression that it is based on the notion of a sovereignty only extending to the colonized territory.

The Rescript of April 17th, 1782, refers in the introduction to "two royal inspectors designated for Greenland....". It begins with the following words: "As it has been humbly pointed out in your letter of March 6th last to our Danish Chancellory that there is no judicial authority in Our country of Greenland....". And further on: "We have graciously deigned to appoint two covenanted officials in this country as inspectors of trade and fisheries, one for the Northern colonies and one for the Southern colonies"; and again further: "the aforesaid two inspectors, each one in respect of the part of the country entrusted to him...."

A report of November 1787 from the Royal Greenland Trade mentions that His Majesty has been pleased "to divide the country into two inspectorates". A report of the Royal Greenland Trade Commission of 1790 speaks of "two inspectors who are to be regarded as the only public authorities in the country", and in the same year another report of the said Commission mentions that the two inspectors have to "watch over the territorial rights of Your Majesty".

Lastly, by a Royal Resolution of March 23rd, 1803, the King appointed MM. Motzfeldt and Myhlemphort "Inspectors of Colonies and Whaling, the former in Northern Greenland and the latter in Southern Greenland".

The administration of these two inspectors, who were the only representatives of the State in Greenland, continued to be definitely limited to the colonized districts, the boundaries of which were fixed.

The system of gradual extension of sovereignty by means of the extension of colonization and administration was consistently followed, and, in 1921, it again found expression in the Decree of May 10th which lays down "that the whole country is henceforward attached to the Danish colonies and stations and to the Danish administration of Greenland"¹ ("*.... que tout le pays est désormais rattaché aux colonies et stations danoises et à l'administration danoise du Groënland*").

What happened in 1921, it is contended on behalf of Denmark, was merely that "the whole country was attached to the special organization, the office at Copenhagen which deals

¹ The (French) translation given above was filed by the Norwegian Government. The translation submitted by the Danish Government was as follows: "*.... l'ensemble du pays est désormais rattaché aux colonies et stations danoises sous l'autorité de l'administration danoise du Groënland*" ("*.... the whole of the country is henceforth attached to the Danish colonies and stations under the authority of the Danish administration of Greenland*"). In view of these two different translations, it seems advisable to give the original Danish text: "*.... at hele Landet herefter er inddraget under de danske Kolonier og Stationer og den danske Styrelse af Grønland*".

effect by several of the contracting Parties to such treaties with Greenland affairs, in other words: it was merely a question of domestic administration". Nevertheless, the Decree of May 10th, 1921, was notified to foreign Powers. Even accepting the construction now placed on this text by Denmark, it seems difficult to admit that a State can have had effective possession of vast territories—even in the Arctic regions—which were subject neither to the central administration nor to the local administration instituted for the colony, of which these vast territories are alleged to form part; territories of this kind, elsewhere, are expressly subject to the different organs of the competent administration, sometimes to several authorities (civil, military, judicial); even if there are parts of the territory which have never been visited by the authorities, there exists however a competent authority for these territories who can act, if circumstances require it.

It follows from the foregoing that the Greenland which up to 1814 was a possession of Norway, and which in 1814 became a Danish possession—that is to say the Greenland referred to in the Treaty of Kiel and during the Norwegian-Danish negotiations concerning the financial settlement—was not the whole of Greenland in the geographical sense of the present day. It could only be, and it was only, the Greenland over which the Monarch of the two united kingdoms had exercised—and over which he consequently possessed—effective sovereignty, in other words, the colonized districts subject to the administration of the Sovereign. That being so, it is unnecessary to dwell further on the scope of the Treaty of Kiel and of the subsequent financial settlement.

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In regard to the numerous treaties in which the Danish Government inserted an exception in regard to Greenland, the following considerations call for attention:

If these treaties can be adduced as evidence that the respective contracting States recognized Danish sovereignty over the whole of Greenland, in virtue of the exception thus inserted by Denmark, how can one account for the fact that the Danish Government itself, in the years 1915-1921, approached a certain number of these very same States with an express request for their recognition? And how can one account for the fact that these States did not then reply that they had already granted this recognition by the conclusion of one or other of these treaties? The true explanation is, perhaps, that at the same time when the treaties of commerce, etc., were concluded, none of these foreign Powers was thinking—owing to the nature of the case—of the area which might be covered by the term "Greenland". Statements to that

effect by several of the contracting Parties to such treaties concluded with Denmark were indeed produced to the Court.

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As regards the conversations which took place on July 14th and 22nd, 1919, between M. Krag, the Danish Minister at Oslo, and M. Ihlen, the Norwegian Minister for Foreign Affairs, there is in existence a record, accepted by both Parties, in the form of notes bearing the initials of M. Ihlen.

The notes are in the following terms, according to the Norwegian Government's translation :

"I. Le ministre de Danemark m'a communiqué aujourd'hui que son Gouvernement a été avisé de Paris que la question du Spitzberg sera examinée par une commission de quatre membres (américain, britannique, français et italien). Au cas où le Gouvernement danois serait interrogé par cette commission, il est prêt à répondre que le Danemark n'a pas d'intérêts au Spitzberg et qu'il n'a aucune raison de s'opposer aux désirs de la Norvège touchant le règlement de cette question.

En outre, le ministre de Danemark a communiqué ce qui suit :

Le Gouvernement danois s'est pendant plusieurs années occupé de la question d'obtenir la reconnaissance, par toutes les Puissances intéressées, de la souveraineté du Danemark sur l'ensemble du Groënland, et il se propose de soumettre cette question, simultanément, à ladite commission. Au cours des négociations avec les États-Unis d'Amérique concernant la cession des Antilles danoises, le Gouvernement danois a soulevé cette question en ce qui concernait la reconnaissance par le Gouvernement des États-Unis, et il a obtenu que celui-ci, concurremment avec la conclusion de la convention relative à la cession desdites îles, donnât une déclaration dans laquelle il est dit que les États-Unis ne s'opposeraient pas à ce que le Gouvernement danois étendît à l'ensemble du Groënland ses intérêts politiques et économiques.

Le Gouvernement danois compte (a-t-il dit) que le Gouvernement norvégien ne fera pas de difficultés au règlement de cette affaire. J'ai répondu que la question sera examinée.

14/7 — 19 Ih."

"II. J'ai dit aujourd'hui au ministre de Danemark que le Gouvernement norvégien ne ferait pas de difficultés au règlement de cette affaire.

22/7 — 19 Ih. 1"

¹ Translation from the French text supplied by Norway :

"I. The Danish Minister to-day informed me that his Government had heard from Paris that the Spitzbergen question would be dealt with by a Committee of four members (American, British, French and Italian). Should this Committee question the Danish Government, the latter would be prepared to answer that Denmark had no interests in Spitzbergen and that Denmark had no reason to oppose Norway's wishes in regard to the settlement of the question.

"Further, the Danish Minister informed me of the following :

"The Danish Government has for several years been concerned with the question of obtaining recognition of Danish sovereignty over all Greenland

The translation filed by the Danish Government does not differ substantially, or in any essential particular, from the above. In place of the words "*au règlement de cette affaire*" ("in the settlement of this matter"), the Danish translation has: "*au sujet du règlement de cette affaire*" ("in connection with the settlement of this matter"). It should be noted that the word "*simultanément*" (*à ladite commission*) ("simultaneously to the Committee") does not appear in the instructions sent to M. Krag.

On July 22nd, the Danish Minister reported to his Minister for Foreign Affairs in the following terms:

"I have the honour to report that M. Ihlen, the Minister for Foreign Affairs, informed me to-day that the plans of the Royal Government respecting Danish sovereignty over the whole of Greenland—mentioned in your despatch of the 12th instant—would meet with no difficulties on the part of Norway."

To appreciate the nature and scope of these conversations, it is necessary to consider the following facts which emerge from the evidence produced:

The Danish Government's overtures to the various other Powers, during the years 1915 to 1921, were in writing, whereas it approached the Norwegian Government in 1919 orally.

In the negotiations with the United States of America in 1916, Denmark expressly reserved her right to the continuance of the monopoly. There is no proof that this was mentioned to M. Ihlen.

In the overtures in writing to the other Powers, the monopoly system is expressly described; in the brief request addressed verbally to Norway in 1919, the extension of this

from all the Powers concerned, and they intend simultaneously to submit this question to the Committee. In the course of the negotiations with the United States of America concerning the cession of the Danish West Indies, the Danish Government raised this question in so far as concerned recognition by the United States Government, and it obtained from the latter, simultaneously with the conclusion of the convention regarding the cession of the islands referred to, a declaration to the effect that the United States would not raise any objection to the extension by the Danish Government of its political and economic interests to the whole of Greenland.

"The Danish Government confidently expected (he said) that the Norwegian Government would make no difficulty in connection with the settlement of this matter. I replied that the question would be considered.

14/7—19 Ih."

"II. I to-day informed the Danish Minister that the Norwegian Government would make no difficulty in the settlement of this matter.

22/7—19 Ih."

system was not mentioned. M. Krag spoke of the Danish Government's anxiety to obtain recognition by all interested Powers "of Denmark's sovereignty" over all Greenland; he described how "this question" had been raised with the United States and he gave the American reply to the effect that the United States would not oppose the extension of Danish political and economic interests over all Greenland. M. Ihlen could not, from these general expressions, and without any explanation or special knowledge, draw the inference that this meant the extension of the monopoly.

On Denmark's side, it has been maintained, in the course of the proceedings, that the overtures to certain Powers between 1915 and 1921 were designed to obtain recognition of sovereignty and also of future measures for the welfare of the Eskimos, i.e. the monopoly system; so far as can be observed, nothing was said regarding the extension of the monopoly in the conversation with M. Ihlen; on the contrary, M. Ihlen's minutes and the instructions given to M. Krag and the latter's despatch to his Government after M. Ihlen's answer, all alike only refer to the question of sovereignty.

The important Greenland Society of Copenhagen, in a letter to the Danish Government on November 2nd, 1916, had said with regard to the coastal area between Germanialand and Cape Dalton (an area which includes Eirik Raudes Land) that "it is a favourite resort of Norwegian hunters who almost every year engage in hunting there both at sea and on land"; and the Society emphasized that "the State of Denmark must exercise sufficient foresight to secure these regions as soon as possible".

The brief minutes kept by M. Ihlen are the only record made in the Norwegian Ministry for Foreign Affairs of the Danish démarche of 1919 and of M. Ihlen's reply.

During the Dano-Norwegian negotiations for the settlement of this matter, the Danish Government closed the coasts of Greenland which had hitherto been open, a measure directed particularly against Norwegians; by this measure the Danish Government broke off the negotiations.

Thus, in 1919, the Danish Government was fully aware of the Norwegian interests in Eastern Greenland. At the same time, the aim of the démarches undertaken by it was an extension of the monopoly the consequences of which were bound to be most serious for Norwegian interests.

The Danish Minister in Paris, on July 11th, 1919, had suggested to his Government that Denmark's attitude in the

Spitzbergen question should be based on that of the Norwegian Government in regard to Denmark's request for recognition of Danish sovereignty over Greenland. Nothing was said to M. Ihlen regarding any such linking together of the two questions, nor did the instructions to M. Krag contain anything on the point. In these instructions we read: "I will, on the other hand, ask you to bring out in the course of the conversation", etc. If what was desired was an arrangement on the principle of *do ut des* in regard to the questions of sovereignty, it should have been expressly stated. The Danish Minister at Oslo begins, on the contrary, by stating unreservedly that the Danish Government, should it be questioned on the point, would be "willing to reply that Denmark has no interests in Spitzbergen and has no reason for opposing Norway's aspirations regarding the settlement of this question".

Moreover, the Danish Minister for Foreign Affairs had already stated unreservedly on April 1st, 1919, to the Norwegian Minister at Copenhagen, that Denmark had no interest conflicting with those of Norway in Spitzbergen; in view of this unofficial statement, it would have been difficult for M. Ihlen to conceive, in July of the same year, that there was any question of an agreement of some sort on the principle of *do ut des*. It has in no way been proved that M. Ihlen knew—as has been alleged—that Denmark, when intending to adopt an attitude favourable to Norway in the Spitzbergen question at the Peace Conference, was relying upon his declaration. M. Ihlen expressly denied it in a statement made by him on July 4th, 1923, protesting against certain assertions made in Denmark. In this statement, M. Ihlen expresses himself as follows:

"On one of the last days of March, 1919, the Norwegian Minister for Foreign Affairs telegraphed to the Norwegian Minister at Copenhagen asking him to explain to the Danish Foreign Minister the reasons militating in favour of the attachment of Spitzbergen to Norway, and to express the hope that Denmark would take a favourable view of the matter. In conformity with these telegraphic instructions, the Norwegian Minister had a conversation with M. Scavenius, Foreign Minister, on the subject of Spitzbergen, on April 1st, 1919. In a despatch of April 2nd regarding this conversation, the Norwegian Minister reported that M. Scavenius had at once declared that the Danish Government would be altogether favourable to the union of Spitzbergen with Norway. Denmark herself had no interest in that region conflicting with those of Norway, and the Danish Government fully recognized the weight of the geographical and economic arguments in favour of uniting these islands with Norway, and considered this as the most practical settlement. Not a word was said about Greenland in this conversation.

The démarche made to me by the Danish Minister at Oslo and alluded to by M. Scavenius did not take place until some months later, on July 14th, 1919. During this conversation, the questions of Spitzbergen and Greenland were both discussed, but I can say with certainty that Monsieur Krag, the Danish Minister, did not on this occasion place any conditions upon the Danish Government's favourable attitude in the question of Spitzbergen. There is therefore no justification for speaking of the conclusion of a contract."

In view of the undeniable fact that Denmark had no interest in Spitzbergen, I should not have considered it equitable to attribute to the Danish Government an intention of proposing, in July 1919, any such bargain on the *do ut des* principle. In point of fact, the Spitzbergen Treaty guaranteed all rights to every Power, including Denmark, whereas Norway, by recognizing Danish sovereignty, would have run the risk of sacrificing all her rights in Greenland.

It is very probable that M. Ihlen was, generally speaking, well disposed owing to the Spitzbergen question, and doubtless he favourably regarded Denmark's desire to approach the Committee of four members at Paris. M. Ihlen also gave evidence of his favourable attitude at a visit paid to him by the new Danish Minister at Oslo in November of the same year; in the course of this visit, M. Ihlen—according to a report of the Danish Minister—said that "it was a pleasure for Norway to recognize Denmark's sovereignty over Greenland". This was an official courtesy visit and too much importance must not be attached to the way in which the remark quoted is worded in the report; but in any case it proves M. Ihlen's attitude.

It has not been proved that the Krag-Ihlen conversations linked together the Greenland and Spitzbergen questions in a manner possessing any real legal significance; and the facts above mentioned militate against the theory that M. Ihlen must have realized the existence of a close connection of this kind. During the year 1921, the Danish Government mentioned to the Norwegian Government the benevolent attitude shown by Denmark in the Spitzbergen question. But only in a note at the beginning of 1923, was the theory that the two questions were interdependent—as maintained before the Court—put forward to Norway. Nevertheless, it is to be observed that this interdependence was not referred to in the Protocol of Closure of the Dano-Norwegian negotiations of January 28th, 1924, in which the Danish delegation expressly referred to the Ihlen declaration as binding upon Norway.

The correspondence with the Danish Minister in Paris was known to the Danish Government and the Danish Minister at Oslo, but unknown to M. Ihlen. The Danish authorities, having this correspondence in mind, gradually conceived an idea of the import of the brief conversations with M. Ihlen, differing from the idea which M. Ihlen himself could have had, as he was unaware of the suggestions put forward regarding the interdependence of the two questions of sovereignty.

It appears from the information supplied during the proceedings that the conversation of July 14th, 1919, was the first notice that the Norwegian Government had of Denmark's aspirations. Thus, M. Ihlen was unprepared for the question; he mentioned the matter verbally and unofficially to his colleagues, but no decision was taken by the Government. It also appears from the information produced that M. Ihlen made no enquiries into the question of Norwegian interests in Eastern Greenland; he was not thinking of them when he gave his verbal answer on July 22nd, 1919.

Norwegian hunters and fishermen had for a considerable period engaged in their pursuits in Eastern Greenland, unquestioned and unhindered by Denmark. Accordingly, it is to be supposed that the Norwegian authorities had no knowledge of any grievance on the part of these Norwegian nationals. Moreover, the Danish Government for its part had never taken exception to these Norwegian activities and, in these circumstances, it is easy to understand that these activities should not at once have occurred to the minds of members of the Norwegian Government; this also explains how it was that the fundamental interests of Norwegians, the questions of law here in issue, the possible extension of the monopoly and of the régime of exclusion to a region where no Eskimos existed, had not at this time been examined by the Norwegian Government. Norway had had no administrative connection with Greenland for more than a century; and the traditions of this connection were no longer familiar to the Norwegian administration in 1919.

M. Ihlen gave his verbal answer a week after he had been approached, whereas the declaration of the United States of America on August 4th, 1916, was made after lengthy negotiations. The United States were directly interested in Davis Strait, and there can be no doubt that there had been intercourse between Americans and the Eskimos living along the West coast of Greenland.

It is true that the Norwegian Government, in the course of the proceedings, produced a document dating from 1916 from which it appears that the Danish administration was then contemplating the application of the régime of exclusion

to the whole of Greenland. Nevertheless, the dispute between the two Parties began some years after M. Ihlen's declaration, and it seems very unlikely that, prior to M. Ihlen's reply, there was any knowledge in Norway of documents relating to the administration of Greenland and still less likely that such documents had been studied.

If the Danish Government had approached Norway in writing as she did the other Powers, the documents would have been submitted to the competent authorities in Norway and the matter would in all probability have taken a different turn.

It might be said that M. Ihlen was guilty of negligence on this occasion; but this criticism applies more strongly to the Danish Government in the same connection. When it is remembered that the action of the Danish Government was, at all events in part, the outcome of Norwegian activity in Eastern Greenland and that the attention of the Danish Government had been specially drawn, shortly before, to these Norwegian interests, and again when it is remembered that the question concerned aspirations and plans conceived by Denmark, it is reasonable to say that there was more serious negligence on the part of the Danish Government than on that of the Norwegian Government, which was unprepared for the Danish *démarche* and did not regard its reply as a definitive settlement of the matter.

It appears that the object of the conversations of July 14th and 22nd, 1919, between M. Ihlen and M. Krag was, so far as Denmark was concerned, to obtain a final and binding promise; but, in that case, the form of the Danish *démarche* leaves much to be desired. The outcome was a verbal answer given by the Norwegian Minister for Foreign Affairs, without any discussion between the two Governments upon the substance of the question and without the question having been examined in Norway. The responsibility for this fatal omission rests first and foremost upon Denmark.

M. Ihlen, it is true, when making his declaration of July 22nd, was speaking on behalf of the Norwegian Government and promised that Norway would raise no difficulty in the future settlement of this matter. Such a promise made by the Minister for Foreign Affairs is, in principle, valid and binding. But in the present case there are special circumstances. M. Ihlen, when making his declaration, was labouring under a fundamental and excusable misapprehension. I would refer to M. Ræstad's letter of July 20th, 1921, to the Danish Minister at Oslo: "... I have now received a communication from Ihlen, whence it appears—as I thought—that, in his conversation with M. Krag, he did not give it to be understood that Norway would agree to the new territory

being placed under the Danish Monopoly." This misapprehension on the part of M. Ihlen was, in the first place, due to the fact that the Danish request had been made verbally and was not accompanied by the information given to the other Powers regarding the extension of the monopoly and régime of exclusion, which was, as subsequently explained by Denmark, the real object of the démarche. This object was explained in a note addressed on December 19th, 1921, by the Danish Minister at Oslo to the Norwegian Ministry for Foreign Affairs. In that note it is explained that the words used in the American reply and quoted by M. Krag to M. Ihlen: "... to the Danish Government extending their political and economic interests to the whole of Greenland", contemplated precisely the extension to the whole of Greenland of the special regulations in question, i.e. the regulations of the monopoly and régime of exclusion.

A promise given under such conditions has not the same value as a promise which is not tainted by an error or defect.

M. Ihlen's declaration clearly related to a future settlement of the matter between the two Governments. Obviously, the Danish Government, which was well aware of the Norwegian interests on the East coast of Greenland, realized that the future settlement must necessarily cover these interests; it would be contrary to common sense to contend that the Norwegian interests could be put on one side during the settlement in regard to which the Norwegian Minister for Foreign Affairs had promised not to place difficulties in the way of the Danish aspirations. The undertaking thus given was, in the nature of things, based on the idea of reciprocity. The two Parties were bound, after the Ihlen-Krag conversations, mutually to refrain from making difficulties when the time came to effect a settlement between them.

Norway was honouring M. Ihlen's promise when Denmark suddenly broke off the negotiations for a mutual settlement.

On May 6th, 1921, the Danish Government obtained a royal decision by virtue of which it attached all Greenland to the Danish colonies and factories and to the Danish administration of Greenland. Even at this date, when the Danish Government had thus decided to break off all negotiations, the Norwegian Government still preserved its conciliatory attitude. On May 7th, the Norwegian Minister for Foreign Affairs, who was entirely ignorant of the Danish decision of May 6th, suggested to the Danish Minister at Oslo the following arrangement: the Norwegian Government was to make a declaration corresponding approximately to that of the American Government and would, at the same time, in a separate note, point out that

this declaration was made subject to the reservation that Norway did not abandon the rights above mentioned (namely, the fishing and hunting rights of Norwegians). He added that the Norwegian Government would doubtless favourably consider any method which would lead to a settlement such as has been indicated above; he did not attach so much importance to the question of form.

On May 10th, the Danish Government formally broke off the negotiations in progress with the Norwegian Government by means of the following note sent by the Danish Minister at Oslo:

"With regard to the Greenland question, I have received from the Ministry for Foreign Affairs a telegram, the terms of which I venture to transmit to you:

'The Ministry for Foreign Affairs does not desire any further démarche to be made with a view to obtaining from the Norwegian Government a written declaration, but desires to rest content with the promise already made verbally on behalf of Norway.'"

The reason for this unexpected action was that the Norwegian Government, which was fully within its rights, wished to settle the matter of Norwegian economic interests at the same time as the question of sovereignty.

By a letter of July 2nd, the Danish Minister at Oslo informed the Norwegian Minister for Foreign Affairs that the whole of Greenland was closed.

By this rupture of the Dano-Norwegian negotiations, Denmark abolished the arrangement made with M. Ihlen, and the promise of the Norwegian Minister for Foreign Affairs thereby ceased to be binding. Denmark's failure to fulfil the implicit obligation resulting for her from the Krag-Ihlen agreement, gave the other Party the right to declare himself released from his undertaking.

This was what happened.

Eighteen days after the notification of the closing of the whole of Greenland, M. Ræstad, the Norwegian Minister for Foreign Affairs, wrote to the Danish Minister in the following terms:

"You will no doubt have to reckon with the fact that the present Norwegian Government, like its predecessor, in agreement with the opinion of other responsible circles, is unable to accept an extension of Danish sovereignty over Greenland involving a corresponding extension of the monopoly, to the detriment of Norwegian interests."

The Danish Government has argued before the Court that, by this letter, Norway was not contesting the sovereignty of Denmark over the whole of Greenland. The accuracy of this allegation cannot be admitted. The Danish Government, in its overtures to foreign Powers, had linked the question of

sovereignty and that of the monopoly so closely together that it is impossible to treat them as separate in this connection. The Danish Government had spoken of an extension of sovereignty, while—according to its own statement—it had in mind, from beginning to end, the extension of the monopoly system. In a memorandum, dated January 18th, 1921, from the Danish Legation at Oslo to the Norwegian Minister for Foreign Affairs, a description is given of the overtures made to the Great Powers; it contains the following passage: "The Ministry accordingly sent instructions, at the beginning of last March, to its Ministers in London, Paris, Rome and Tokyo, to endeavour to obtain official recognition by the Governments in question of Danish sovereignty over the whole of Greenland urging, in support of the request, the actual position of Denmark in relation to Greenland; the best method of according this recognition would, in the opinion of the Danish Government, be for the said Governments to make declarations corresponding to that already given by the United States." But during the present proceedings, the Danish Government has laid considerable stress on the fact that the American reply contained a definite and specific reference to the system of monopoly, which Denmark was proposing to continue and to develop. In the instructions sent to the Danish Ministers abroad, this inseparable inter-connection, this unity in dualism, was brought out by the words: "it is desirable that the Danish Government should extend its care [for the Eskimos, by means of the monopoly] by means of its sovereignty over the whole of Greenland."

The first overture, which was made verbally to the Norwegian Government in July 1919, only touched on the question of the recognition of sovereignty; and the second overture, which was made in writing on January 18th, 1921, was also concerned with the question of sovereignty, "an extension of Danish sovereignty to the whole of Greenland". But, as has been already said, a later Danish note of December 19th, 1921, revealed that what was actually aimed at was the extension of the monopoly system as well.

M. Ihlen gave his reply without realizing this inseparable inter-connection, and indeed without being able to suspect its existence. However, when this connection became clear to M. Ræstad, the latter stated that Norway could not accept such a request for recognition by Denmark. The request sought indeed to obtain everything: sovereignty plus monopoly, monopoly plus sovereignty, "[an extension of its] care by means of its sovereignty". That was indeed the object which the Danish request had throughout had in view, and it was *this* request that Norway refused to accede to. M. Ræstad's

no was a rejection of the request for recognition of Danish sovereignty, in the form in which it appeared when all its aspects had been fully revealed. M. Ræstad's letter of July 20th, 1921, contains, for that reason, a refusal to recognize this sovereignty over the whole of Greenland, the recognition of which Denmark had endeavoured by her overtures to obtain.

In this connection, some importance attaches to the fact that in both the overtures made to the Norwegian Government in 1919 and 1921—and not least in the latter of these overtures—the Danish Government had shown that it did not regard itself as possessing sovereignty over the whole of Greenland. The conviction thus implanted in the mind of the Norwegian Government led to certain consequences.

When one considers in succession the incomplete form of the request made to M. Ihlen, the light which was subsequently thrown on the plan for the extension of the monopoly and the régime of exclusion, the not very conciliatory attitude of the Danish Government, when the Norwegian Government desired to have a settlement of Norwegian economic interests in conjunction with the recognition of Danish sovereignty, and lastly, the Danish decision to close Eastern Greenland on the ground, as was alleged, that Norway had recognized the extension of Danish sovereignty, one is driven to the conclusion that it would be contrary to all justice that, after the rupture of the negotiations by Denmark in 1921, Norway should still be regarded as bound by M. Ihlen's promise, and obliged to refrain from making difficulties in a future settlement between the two countries.

It is necessary here to mention another fact which is of some importance in this connection. By a declaration made to the Danish Government on September 6th, 1920, the British Government had reserved its right to be consulted, in case Denmark should contemplate selling Greenland. This British reservation, which was not rejected by the Danish Government, was not communicated to the Norwegian Government, to whom it presented, without doubt, considerable importance.

Keeping in view the realities of the case, I am thus led to the conclusion that the Krag-Ihlen arrangement had lost its binding force in 1921.

Since that time, the Norwegian Government has unceasingly maintained that Denmark only possesses sovereignty over a part of Greenland, and that Norway has not recognized a Danish sovereignty extending to the whole country.

Nevertheless, in a note dated July 13th, 1923, the Norwegian Government declared that it was prepared to enter into

fresh negotiations on "an entirely free basis". The Norwegian conception was given very definite expression in the Protocol of Closure of the Danish-Norwegian negotiations, dated January 28th, 1924. The Norwegian delegation declared therein that all parts of Greenland, which were not effectively under Danish administration, were *terra nullius*.

Accordingly, the Norwegian Government has consistently maintained, ever since the breaking off of the negotiations by the Danish Government in 1921, that it is not bound by the Krag-Ihlen arrangement.

The reasons which I have set forth above lead me to accept the submissions presented by the Norwegian Government in regard to sovereignty, and for these reasons consequently prevent me, to my regret, from signing the judgment which the Court has delivered. I am, however, in agreement with the conclusion of the judgment which deals with the costs of the proceedings.

(Signed) BENJAMIN VOGT.